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ther alleged, prison authorities took no measures to protect her against the second assault. After that assault, Ortiz charged, and in retaliation for accounts she gave of the two episodes, prison officials placed her, shackled and handcuffed, in solitary confinement in a cell without adequate heat, clothing, bedding, or blankets. The treatment to which she was exposed, Ortiz claimed, violated her right, safeguarded by the Eighth and Fourteenth Amendments, to reasonable protection from violence while in custody.

Principal defendants in the suit, Paula Jordan, a case manager at Ortiz's living unit, and Rebecca Bright, a prison investigator, moved for summary judgment on their pleas of "qualified immunity," a defense that shields officials from suit if their conduct "d[id] not violate clearly established statutory or constitutional rights of which a reasonable person would have known." *Harlow v. Fitzgerald*, 457 U. S. 800, 818 (1982). Finding that the qualified immunity defense turned on material facts genuinely in dispute, see Fed. Rule Civ. Proc. 56(a), the District Judge denied summary judgment. *Ortiz v. Voinovich*, 211 F. Supp. 2d 917, 923–930 (SD Ohio 2002).

The case then proceeded to trial, and the jury returned verdicts for Ortiz against both Jordan and Bright. The two officers appealed to the United States Court of Appeals for the Sixth Circuit, targeting, *inter alia*, the denial of their pretrial motion for summary judgment. "[C]ourts normally do not review the denial of a summary judgment motion after a trial on the merits," the Court of Appeals recognized. 316 Fed. Appx. 449, 453 (2009). Nevertheless, the court continued, "denial of summary judgment based on qualified immunity is an exception to this rule." *Ibid.* Reversing the judgment entered on the jury's verdict, the appeals court held that both defendants were sheltered from Ortiz's suit by qualified immunity.

We granted review, 559 U. S. 1092 (2010), to decide a threshold question on which the Circuits are split: May a party, as

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the Sixth Circuit believed, appeal an order denying summary judgment after a full trial on the merits?¹ Our answer is no. The order retains its interlocutory character as simply a step along the route to final judgment. See *Cohen v. Beneficial Industrial Loan Corp.*, 337 U. S. 541, 546 (1949). Once the case proceeds to trial, the full record developed in court supersedes the record existing at the time of the summary-judgment motion. A qualified immunity defense, of course, does not vanish when a district court declines to rule on the plea summarily. The plea remains available to the defending officials at trial; but at that stage, the defense must be evaluated in light of the character and quality of the evidence received in court.

When summary judgment is sought on a qualified immunity defense, the court inquires whether the party opposing the motion has raised any triable issue barring summary adjudication. “[O]nce trial has been had,” however, “the availability of official immunity should be determined by the trial record, not the pleadings nor the summary judgment record.” 15A C. Wright, A. Miller, & E. Cooper, *Federal Practice & Procedure* §3914.10, p. 684 (2d ed. 1992 and Supp. 2010). After trial, if defendants continue to urge qualified immunity, the decisive question, ordinarily, is whether the evidence favoring the party seeking relief is legally sufficient to overcome the defense. See Fed. Rule Civ. Proc. 50(a), (b) (stating conditions on which judgment may be granted as a matter of law).

In the case before us, the Court of Appeals, although purporting to review the District Court’s denial of the prison

¹ Compare, e. g., *Black v. J. I. Case Co.*, 22 F. 3d 568, 570–571 (CA5 1994) (declining to review denial of summary judgment after trial); *Price v. Kramer*, 200 F. 3d 1237, 1243–1244 (CA9 2000) (no exception where summary judgment rejected assertion of qualified immunity), with *Goff v. Bise*, 173 F. 3d 1068, 1072 (CA8 1999) (denial of summary judgment based on qualified immunity reviewable after trial on the merits); 316 Fed. Appx. 449, 453 (CA6 2009) (case below) (same).

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officials' pretrial summary-judgment motion, 316 Fed. Appx., at 453, several times pointed to evidence presented only at the trial stage of the proceedings, see *id.*, at 453–454. The appeals court erred, but not fatally, by incorrectly placing its ruling under a summary-judgment headline. Its judgment was infirm, however, because Jordan's and Bright's failure to renew their motion for judgment as a matter of law under Federal Rule of Civil Procedure 50(b) left the appellate forum with no warrant to reject the appraisal of the evidence by "the judge who saw and heard the witnesses and ha[d] the feel of the case which no appellate printed transcript can impart." *Cone v. West Virginia Pulp & Paper Co.*, 330 U. S. 212, 216 (1947).

I

Michelle Ortiz, serving a sentence for aggravated assault against her husband,² maintained that she was sexually assaulted on consecutive days by Corrections Officer Douglas Schultz. On Friday, November 8, 1996, Ortiz recounted, Schultz walked up behind her in the washroom of her living quarters and grabbed one of her breasts.³ Ortiz fended off the assault, but Schultz returned later that day and threatened to "see [her] tomorrow," Tr. 36.

The next day, Ortiz described the incident to Jordan. After assuring Ortiz that "no one has the right to touch you," 316 Fed. Appx., at 451 (internal quotation marks omitted), Jordan told Ortiz that Schultz had been reassigned to another correctional facility and was serving his last day at the reformatory. Ortiz could file a written complaint, Jordan noted. She suggested, however, that Ortiz not do so, in view of Schultz's imminent departure. Jordan advised Ortiz that she "always ha[d] the right to defend [her]self," Tr. 43,

² Ortiz maintained in her criminal prosecution that she acted in retaliation for multiple incidents of domestic violence to which she had been subjected over a span of several years. 316 Fed. Appx., at 450.

³ The accounts of the episodes-in-suit described here recite facts the jury reasonably could have found from the testimony presented at trial.